

Court No. - 86

Case :- APPLICATION U/S 482 No. - 36795 of 2023

Applicant :- Syed Avesh Ahmad

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Mohammad Firoz Khan

Counsel for Opposite Party :- G.A.

Hon'ble Rajiv Gupta,J.

As prayed by learned counsel for the applicant, put up this case as fresh on 09.11.2023 showing the name Shri N.K. Tiwari as counsel for the opposite party no.3.

Order Date :- 31.10.2023

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Hon'ble Rajiv Gupta,J.

List revised.

None is present on behalf of applicant to press this application.

List after four weeks.

Order Date :- 30.11.2023

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Court No. - 92

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Applicant :- Syed Avesh Ahmad

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Mohammad Firoz Khan

Counsel for Opposite Party :- G.A.

Hon'ble Prashant Kumar,J.

1. Heard Mohd. Firoz Khan, learned counsel for the applicant, Sri Shashidhar Pandey, learned Additional Government Advocate for the State-opposite party no.1 and perused the record.

2. The present application under Section 482 Cr.P.C. has been filed by the applicant praying for quashing the impugned charge sheet dated 23.06.2021, summoning order dated 12.10.2021 as well as entire proceeding of Case No.1272 of 2021 (State Vs. Syed Avesh Ahmad) arising out of Case Crime No.607 of 2019, under Section 135 of Indian Electricity Act, 2003, Police Station Anti Power Theft Prayagraj, District Prayagraj pending in the court of Special Judge E.C. Act, Allahabad.

3. Learned counsel for the applicant submits that the applicant is retired Circle Officer of U.P. Police. He further submits that there was some checking happened in his neighbours house and when the applicant raised an objection for the same, he has also been implicated wrongly without following the relevant provisions of electricity supply code. He further submits that applicant has never committed any offence as alleged against him. Further submission is that no offence against the applicant is disclosed and the court below has utterly failed to consider as no *prima facie* case is made out against the applicant.

4. Per contra, learned A.G.A. has vehemently opposed the application and contended that during checking it was found that additional cable is connected from L.T. Line other than connection no.172337 at the residence of applicant. He further submits that after investigation the charge sheet has been filed in this matter. It is further submitted that the Court below has rightly summoned the applicant and no interference is required by this Court in the impugned order as well as the on going proceedings.

5. From the perusal of material on record and looking into the facts of the case at this stage it cannot be said that no offence is made out against the applicant. All the submissions made at the bar relates to the disputed question of fact, which cannot be adjudicated upon by this Court under Section 482 Cr.P.C. At this stage only *prima facie* case is to be seen in the light of the law laid down by Supreme Court.

6. Hon'ble Supreme Court in the matter of **State of Haryana Vs. Bhajan Lal 1992 Supp (1) SCC 335** has laid down the guidelines under which circumstances the Court should, in its inherent power, entertain an application under Section 482

Cr.P.C. The guidelines are as follows:-

"(i) Where the allegations made in the first information report or the complaint, even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused.

(ii) Where the allegations in the first information report and other materials, if any, accompanying the FIR do not disclose a cognizable offence, justifying an investigation by police officers under Section 156(1) of the Code except under an order of a Magistrate within the purview of Section 155(2) of the Code.

(iii) Where the uncontroverted allegations made in the FIR or complaint and the evidence collected in support of the same do not disclose the commission of any offence and make out a case against the accused.

(iv) Where, the allegations in the FIR do not constitute a cognizable offence but constitute only a non-cognizable offence, no investigation is permitted by a police officer without an order of a Magistrate as contemplated under Section 155(2) of the Code.

(v) Where the allegations made in the FIR or complaint are so absurd and inherently improbable on the basis of which no prudent person can ever reach a just conclusion that there is sufficient ground for proceeding against the accused.

(vi) Where there is an express legal bar engrafted in any of the provisions of the Code or the Act concerned (under which a criminal proceeding is instituted) to the institution and continuance of the proceedings and/or where there is a specific provision in the Code or the Act concerned, providing efficacious redress for the grievance of the aggrieved party.

(vii) Where a criminal proceeding is manifestly attended with mala fides and/or where the proceeding is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due to private and personal grudge."

7. Further, the Hon'ble Supreme Court in the cases of **M/s Neeharika Infrastructure Pvt. Ltd. vs. State of Maharashtra, AIR 2021 SC 1918, R.P. Kapur Vs. State of Punjab, A.I.R. 1960 S.C. 866, State of Bihar Vs. P.P.Sharma, 1992 SCC (Cr.) 192**, and lastly, **Zandu Pharmaceutical Works Ltd. Vs. Mohd. Saraful Haq and another (Para-10) 2005 SCC (Cr.) 283** has held that only those cases in which no *prima facie* case is made out can be considered in an application under Section 482 Cr.P.C.

8. The instant application does not fall under the guidelines laid down by the Hon'ble Supreme Court in the judgements mentioned above, and followed in a number of matters. Moreover, the facts as alleged cannot be said that, *prima facie*, no offence is made out against the applicant. It is only after the evidence and trial, it can be seen as to whether the offence, as alleged, has been committed or not.

9. Hence, the instant application filed under Section 482 Cr.P.C. cannot be entertained and is, accordingly, dismissed.

Order Date :- 8.2.2024/S.P.